

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Edward Tsigel	Team: Squad #4	CCRB Case #: 202004362	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 12/17/2019 4:29 PM	Location of Incident: North East Corner of 90th Avenue and 170th Street	Precinct: 103	18 Mo. SOL 6/17/2021	EO SOL 2/1/2022	
Date/Time CV Reported Fri, 05/29/2020 1:44 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 06/17/2020 12:04 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Erick Harsch	30956	956722	103 PCT
2. POM Daniel Ohman	10320	961032	103 PCT
3. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Kevin Mahoney	28770	950803	103 PCT
2. SGT Mark Finelli	01363	952733	I.A.B.

Officer(s)	Allegation	Investigator Recommendation
A.POM Daniel Ohman	Abuse: Police Officer Daniel Ohman threatened § 87(2)(b) with the use of force.	
B.POM Daniel Ohman	Abuse: Police Officer Daniel Ohman threatened to damage § 87(2)(b)'s property.	
C.POM Erick Harsch	Abuse: Police Officer Erick Harsch threatened to damage § 87(2)(b)'s property.	
D.POM Daniel Ohman	Force: Police Officer Daniel Ohman used physical force against § 87(2)(b)	
E.POM Erick Harsch	Force: Police Officer Erick Harsch used physical force against § 87(2)(b)	
F.POM Daniel Ohman	Abuse: Police Officer Daniel Ohman searched the vehicle in which § 87(2)(b) was an occupant.	
G. An officer	Abuse: An officer damaged § 87(2)(b)'s property.	

Case Summary

On May 29, 2020, § 87(2)(b) called the IAB Command Center and filed this complaint (IAB log # 2020-14572). The CCRB received this complaint on June 17, 2020.

On December 17, 2019, at 4:29 PM, § 87(2)(b) was pulled over by Police Officer Daniel Ohman and Police Officer Erick Harsch, both of the 103rd Precinct, at the intersection of 90th Avenue and 170th Street. PO Ohman threatened § 87(2)(b) with the use of force and threatened to break her window (**Allegations A and B – Abuse of Authority – § 87(2)(g)**). PO Harsch threatened to break § 87(2)(b)'s window (**Allegation C – Abuse of Authority – § 87(2)(g)**). PO Ohman and PO Harsch opened the driver door, grabbed and pulled § 87(2)(b) out of her vehicle, and arrested her (**Allegations D and E – Force – Exonerated**).

§ 87(2)(b) was arrested for § 87(2)(b).

§ 87(2)(b)'s vehicle was subsequently driven to the 103rd precinct stationhouse and vouchered as arrest evidence by PO Ohman. PO Ohman searched § 87(2)(b)'s vehicle at the stationhouse (**Allegation F – Abuse of Authority – § 87(2)(g)**). § 87(2)(b) alleged that while her vehicle was in custody, an officer damaged multiple papers and her laptop in the vehicle (**Allegation G – Abuse of Authority – § 87(2)(g)**).

The CCRB received three Body Worn Camera (BWC) videos (BR 04-06) and one cell phone video from § 87(2)(b) of this incident (IA 35).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Daniel Ohman threatened § 87(2)(b) with the use of force.

Allegation (B) Abuse of Authority: Police Officer Daniel Ohman threatened to damage § 87(2)(b)'s property.

Allegation (C) Abuse of Authority: Police Officer Erick Harsch threatened to damage § 87(2)(b)'s property.

Allegation (D) Force: Police Officer Daniel Ohman used physical force against § 87(2)(b).

Allegation (E) Force: Police Officer Erick Harsch used physical force against § 87(2)(b).

It is undisputed that on December 17, 2019, at 4:29 PM, PO Ohman (BR 01) and PO Harsch (BR 02) pulled § 87(2)(b) (BR 03) over at the intersection of 90th Avenue and 170th Street for running a red light. Upon approaching § 87(2)(b)'s vehicle, PO Ohman and PO Harsch requested that § 87(2)(b) roll her window down and provide her license and registration. § 87(2)(b) rolled her window down approximately one inch and provided her license. PO Ohman and PO Harsch then told her to provide her registration and to fully roll her window down for the officers' safety. § 87(2)(b) refused to lower her window any further for approximately ten minutes.

PO Harsch's BWC (BR 04), shows that it is raining, and dark outside. The visibility into the car is poor. It is difficult to hear § 87(2)(b) because the window was partially open and because of the rain and traffic in the background. § 87(2)(b) is seen searching through her belonging and center console while failing to roll her window down further, as instructed by PO Ohman and PO Harsch.

At 1:30 of the BWC (BR 04), PO Ohman says, "Like I said I'm going to need your information, otherwise I'm going to pull you out of the car." At 3:00 PO Ohman says, "You're going to roll this window down, otherwise I'm going to break the window." At 11:10 PO Harsch says, "You can roll your window down or we're going to break the window." At 11:10 § 87(2)(b) fully opens her window. PO Ohman and PO Harsch immediately reach through the window and open the door. Both officers reached into the vehicle, grab and pull § 87(2)(b) out, and place her under arrest.

PO Ohman (BR 01) and PO Harsch (BR 02) both stated their safety was a concern because they could not clearly see what § 87(2)(b) was doing or hear what she was saying. As a result, they requested § 87(2)(b) to fully roll her window down and she repeatedly refused to comply. Both officers stated that § 87(2)(b) was considered under arrest immediately after she refused to provide her registration and roll her window down. PO Ohman and PO Harsch both made statements threatening § 87(2)(b) with force and to break her window because she was under arrest at the time, and if she continued to disobey commands, the officers would need to break the window and pull her out of the vehicle to arrest her. Once the officers got the opportunity to arrest § 87(2)(b) without breaking her window, they immediately pulled her out of the vehicle and arrested her.

New York State Penal Law 195.05 (BR 07) states that a person is guilty of obstructing governmental administration when they intentionally prevent a public servant from performing an official function by means of interference.

Onderdonk v. State, 170 Misc. 2d 155 (1996) (BR 08) ruled that police officers can damage property only if doing so is reasonably necessary to carry out their duties.

Patrol Guide Procedure 221-02 (BR 09) officers must apply no more than the reasonable force necessary to gain control, assessing the situation continually and adjusting the use of force as necessary.

§ 87(2)(g)

§ 87(2)(g)

Allegation (F) Abuse of Authority: Police Officer Daniel Ohman searched the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b)'s vehicle was seized and transported to the 103rd precinct stationhouse as a result of her arrest. § 87(2)(b) (BR 03) stated that when she was put into a cell, an unknown sergeant told her that her vehicle was searched and vouchered at the stationhouse but did not say who searched it. She did not see the officer who searched her vehicle and was never made aware of which officer searched it.

PO Ohman (BR 01) and PO Harsch (BR 02) both stated that § 87(2)(b)'s vehicle was taken to the stationhouse as arrest evidence and because it was not legally parked and could not be left on the street. Neither officer remembered who searched § 87(2)(b)'s vehicle at the stationhouse. PO Harsch stated that either he or PO Ohman would have been responsible for searching and vouchering § 87(2)(b)'s vehicle.

The property voucher (BR 10) for § 87(2)(b)'s vehicle notes that PO Ohman was the arresting and invoicing officer and filed the voucher paperwork. § 87(2)(g)

Patrol Guide Procedure 218-13 (BR 11) states that whenever a vehicle comes into the custody of the police department a thorough inventory search must be conducted and an invoice must be accurately prepared.

§ 87(2)(g)

Allegation (G) Abuse of Authority: An officer damaged § 87(2)(b)'s property.

§ 87(2)(b) (BR 03) stated that on December 18, 2019, she was released from custody. On December 27, 2019, she returned to the stationhouse and retrieved her vehicle. § 87(2)(b) realized that her laptop had a new scratch on it (BR 12), and that her paperwork had been stained by a spilled liquid she believed to be coffee (BR 13). § 87(2)(b) did not see which officer caused this damage and was never made aware of which officer caused it.

PO Ohman (BR 02) and PO Harsch (BR 03) both denied that they damaged any belongings in § 87(2)(b)'s vehicle. They both stated that they never saw another officer cause damage nor were either of them ever made aware that any of § 87(2)(b)'s property sustained any damage.

At no point during PO Harsch's BWC (BR 04) or PO Ohman's BWC (BR 05) is either officer seen damaging any of § 87(2)(b)'s property. From 1:30 to 4:50 of PO Mahoney's BWC (BR 06), it shows that PO Mahoney drove § 87(2)(b)'s vehicle from the incident location to the stationhouse. At no point does PO Mahoney handle any property or cause any damage to the property inside of § 87(2)(b)'s vehicle.

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 14).
- PO Ohman has been a member of service for four years and has been a subject in two CCRB complaints and four allegations, none of which were substantiated. § 87(2)(g)
- PO Harsch has been a member of service for six years and has been a subject in three CCRB complaints and four allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- This case was not eligible for mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- As of July 20, 2020, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (BR 16).

Squad No.: 4

Investigator:	<u>Edward Tsigel</u>	<u>Inv Edward Tsigel</u>	<u>01/04/2021</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Raquel Velasquez</u>	<u>IM Raquel Velasquez</u>	<u>01/04/2021</u>
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date

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